Oregon Department of Human Services

Licensed Child Caring Agency Unannounced Site Visit Report

Licensee: Douglas County Juvenile Department
Executive Director: Aric Fromdahl
Assistant Director: Rob Salerno
Date of Unannounced: 5/22/23
Licensing Coordinator: Mary Torres
Other Regulatory or Accrediting Agencies: Oregon Department of Human Services (ODHS) Child Welfare – Treatment Services, Oregon Health Authority (OHA), Joint Commission

Purpose: Per OAR 419-400-0240 (1)(b) Children's Care Licensing is required to perform at least one unannounced site visit a year where children in care reside.

Previous Findings from 2022 Review	Repeat Findings Further Action Needed	Comments
All required policies and procedures as identified in the "Umbrella Rules" The policy submitted to cover Conflict of Interest, Policy # A-10, does not meet Licensing Rule. **CORRECTIVE ACTION:** Create a Conflict-of-Interest policy that meets Licensing Rule.	**Yes☐ No✓**	A revised policy meeting Licensing Rule was submitted to Licensing on 7/26/22.
All required policies and procedures as identified in the "Umbrella Rules" The submitted Youth and Parent/Guardian Rights (Policy #CTS-8) is missing required items.	**Yes☐ No✓**	A revised policy meeting Licensing Rule was submitted to Licensing on 7/26/22.

CORRECTIVE ACTION: Revise Policy #CTS-8 that is reflective of the related Licensing Rule.		
All required policies and procedures as identified in the "Umbrella Rules" The existing Grievance Procedure (Policy # CTS-9) requires revision to meet compliance. **CORRECTIVE ACTION:** Revise Policy # CTS-9 that is reflective of the related Licensing Rule.	**Yes☐ No✓**	A revised policy meeting Licensing Rule was submitted to Licensing on 7/26/22.
All required policies and procedures as identified in the "Umbrella Rules" The existing policy related to mandatory child abuse reporting (Policy# A-17) requires revision to meet compliance. **CORRECTIVE ACTION:** Revise the existing policy that is reflective of the related Licensing Rule.	**Yes☐ No✓**	A revised policy meeting Licensing Rule was submitted to Licensing on 9/6/22.
All required policies and procedures as identified in the "Umbrella Rules" A policy regarding documenting and reporting critical events was not submitted for review. **CORRECTIVE ACTION:** Submit a copy of this policy. If one does not exist, generate this policy as outlined by the related Licensing Rule.	**Yes☐ No✓**	A revised policy meeting Licensing Rule was submitted to Licensing on 7/26/22.
All required policies and procedures as identified in the "Umbrella Rules" Submitted policy regarding personnel (Policy# A-12) requires revision to meet compliance. **CORRECTIVE ACTION:** Revise Policy# A-12 that is reflective of the related Licensing Rule.	**Yes☐ No✓**	A revised policy meeting Licensing Rule was submitted to Licensing on 11/15/22.
All required policies and procedures as identified in the "Umbrella Rules"	**Yes☐ No✓**	A revised policy meeting Licensing Rule was submitted to Licensing on 7/26/22.

The policy submitted regarding privacy (Policy# A-11) is related to employees and not youth and their families. **CORRECTIVE ACTION:** Submit privacy policy for youth and their families for review. If a policy does not exist, create one reflective of the related Licensing Rule.		
All required policies and procedures as identified in the "Umbrella Rules" The existing Behavior Management Policy (Policy # CTS-1) requires revision to meet compliance. **CORRECTIVE ACTION:** Revise Policy # CTS -1 that is reflective of the related Licensing Rule.	**Yes☐ No✓**	A revised policy meeting Licensing Rule was submitted to Licensing on 9/1/22.
All required policies and procedures as identified in the "Umbrella Rules" Youth Searches policy (Policy# YC-1) requires revision to meet compliance. **CORRECTIVE ACTION:** Revise Policy# YC-1 that is reflective of the related Licensing Rule.	**Yes☐ No✓**	A revised policy meeting Licensing Rule was submitted to Licensing on 8/23/22.
All required policies and procedures as identified in the "Umbrella Rules" Use of Restraint and Seclusion policy (Policy# CTS-22) requires revision to meet compliance. **CORRECTIVE ACTION:** Revise Policy# CTS-22 that is reflective of the related Licensing Rule.	**Yes☐ No✓**	A revised policy meeting Licensing Rule was submitted to Licensing on 9/1/22.
413-215-0511(2)(a) &(c) Buildings are smoke free, clean and in good repair Room #3 at Rising Light has profanity written on walls. Room #4 at River Rock has multiple holes in the wall. Room #2 at River Rock door and door frame damaged	**Yes☐ No✓**	Repairs and a plan regarding the towels were made as per the program's Corrective Action Plan (CAP) submitted in writing on 7/26/22 to Licensing. Repairs and plan related to the towels were verified during this 2023 Unannounced site visit.

River Rock has soaked towels outside shower stall as makeshift bathmat Bathroom at River Rock has a hole in the wall **CORRECTIVE ACTION:** Wipe clean or paint over profanity. Repair holes in the walls. Replace or repair door and door frame Develop a plan where towels are picked up from the floor to avoid saturated towels from being left on floors for extended periods of time. Repair hole in wall in bathroom		
413-215-0511(2)(h) Building is well ventilated and room temperature is within a normal comfort range Room #10 at River Rock noticeably cool during the facility's tour. **CORRECTIVE ACTION:** Assess youth's comfort level with the room's temperature and evaluate what maybe causing the noticeable difference in room temperature to ensure a normal comfort range.	**Yes☐ No✓**	The program verified in their written Corrective Action Plan submitted to Licensing on 7/26/22, that all room temperatures are functioning normally. Any reported or known variances in temperature are reported to Building and Facilities for repair. During the program's 2023 Unannounced site visit, tour of the building and this specific room did not result in any temperature concerns.
Room and Space Requirements Bedrooms 413-215-0516(3) (c) Outside room with window allowing egress from building Bedrooms at River Rock and Rising Light have either no or fixed windows that require an exception from Licensing. **CORRECTIVE ACTION:** Submit new window exception for this next licensing period (2022-2024).	**Yes☐ No✓**	A window exception was submitted to Licensing on 7/26/22 and granted by Licensing for the next Licensing period (2022-2024).
Room and Space Requirements Bathrooms 413-215-0516(4) (a)(H) Adequate ventilation ***REPEAT FINDING*** from 2021 Unannounced Visit - Bathroom at River Rock continues not to have a source of ventilation.	**Yes☐ No✓**	The program's Corrective Action Plan submitted on 7/26/22 documents that a work order to install ventilation was submitted to Building and Facilities. It was determined that the bathroom already had a supply and return air system. This system was verified during this 2023 Unannounced visit.

CORRECTIVE ACTION: Address lack of ventilation during the facility's current remodel.		
Safety – Transportation 413-215-0541 (5)(b) Vehicle has insurance policy, is smoke free, safe operating condition, and has first aid kit and fire extinguisher 2-A:10-BC Black Impala (without cage) – driver's seat has no back cover 15 passenger van has no 1st aid kit and padlock key to emergency box is missing 14 passenger van 2021 has expired registration **CORRECTIVE ACTION:** Make necessary repairs to the driver's seat in the black Impala. Ensure that the 15-passenger van has a 1st aid kit and that a lock to the padlock is placed on the van's key chain. Renew the registration for the 2021 14 passenger van. Place insurance and accident packet in each vehicle.	**Yes☐ No✓**	The program's Corrective Action Plan submitted to Licensing on 7/26/22 documented requested repairs and missing items were obtained. During this 2023 Unannounced visit, the repairs to the black Impala was verified. One of the vans is no longer used to transport youth and the other van was off site at the time of the visit.
Medication 413-215-0551(10) Written record of the administration of medication includes: (d) missed doses Medication Administration Records (MARs) reviewed at Rising Light, and River Rock reflected several times where missed medication was not appropriately documented. **CORRECTIVE ACTION:** Determine if the missed documentation is related to a specific staff member and follow up with additional training. Remind all staff the importance of medication documentation.	**Yes☐ No✓**	As per the submitted Corrective Action plan on 7/26/22, all staff were reminded/coached on the importance of accurate medication documentation.
Personnel Files 413-215-0061 (3)(f) Record of personnel actions Four out of the five personnel files reviewed did not document the completion of annual evaluations.	**Yes☐ No☐**	The program's Corrective Action Plan submitted on 7/26/22 documents Administrative Managers being reminded to file all completed performance evaluations in their respective employee files. Compliance in this area will be verified in a subsequent site visit.

CORRECTIVE ACTION: Ensure that annual performance evaluations are completed and maintained in their respective personnel files from this point forward.		
New Employee Orientation – Umbrella Requirements (30 days) 413-215-0061(4) (a) Agency policies and procedures (b) Ethical and professional guidelines (c) Organizational lines of authority (d) Attributes of population served (e) & (5)(a) to (c) Mandatory reporting (f) Privacy laws (g) Emergency procedures New Employee Orientation for three staff members could not be verified during the audit of personnel files. **CORRECTIVE ACTION:** Submit a plan as to how new employee training will be provided and appropriately documented from this point forward.	**Yes☐ No☐**	The program acknowledges that not meeting compliance in this area is a result of a deficiency in the documentation and storage of training records. New employee training is done individually without the consistency of single trainers due to previous COVID restrictions that has directly affected appropriate training documentation. The program is exploring a change in the existing training database to reduce multiple persons accessing and storing information. New hire training checklists have been created to ensure that each employee is receiving required training. Compliance in this area will be verified in a subsequent site visit.
Ongoing Training 413-215-0541(5)(a) Employees transporting children have: current driver's license, insurance, trained in emergency procedures and behavior management, and training for 15+ passenger vans if applicable) 413-215-0556(2)(a) Environmental Emergencies 413-215-0556(2)(b) Universal Precautions 413-215-0556(2)(c) Discipline and Behavior Management 413-215-0061(5) Mandatory reporting (annually) Four out of five personnel files did not reflect the completion of required ongoing training in these areas. **CORRECTIVE ACTION:** Submit a plan as to how this training will be provided and appropriately documented from	**Yes☐ No☐**	The program acknowledges that not meeting compliance in this area is a result of a deficiency in the documentation and storage of training records. The program is exploring a change in the existing training database to reduce multiple persons accessing and storing information. The program also plans to send annual training reminders. Compliance in this area will be verified in a subsequent site visit.

this point forward.		
Children's Records Health Services 413-215-0546 (2)(e) Documentation of age-appropriate instruction – pregnancy prevention, nutrition, prevention of HIV & AIDS, and prevention and treatment of sexually transmitted disease Youth files reviewed do not reflect the documentation of age-appropriate instruction. **CORRECTIVE ACTION:** Develop a procedure where age appropriate instruction is documented in the youths' files from this point forward.	**Yes☐ No☐**	As per the program's Corrective Action Plan dated 7/26/22, the documentation of age-appropriate instruction is now included in the program's Assessment and Evaluation document. Compliance in this area will be verified in a subsequent site visit.
Consents 413-215-0576(1) (e) Allow access as defined in 413-215-0091 & 0101 (f) Impose a dress code (g) Apply the reasonable and prudent parent standard Consent allowing access could not be located in the youth files. Consent imposing a dress code could not be located in the youth files. Consent applying reasonable and prudent parent standard could not be located in the youth files. **CORRECTIVE ACTION:** Add required consents to intake packet.	**Yes☐ No☐**	As per the program's Corrective Action Plan submitted on 7/26/22, these required consents have been added to their intake paperwork. Compliance in this area will be verified in a subsequent site visit.
Disclosures 413-215-0576(2) Parent/guardian has acknowledged in writing: (a) Information regarding personal or room searches and protocols for confiscation of contraband (c) Any policies and procedures upon request	**Yes☐ No☐**	As per the program's Corrective Action Plan submitted on 7/26/22, these required disclosures have been added to their Program and Youth Handbook. Compliance in this area will be verified in a subsequent site visit.

Disclosure regarding personal and room searches and protocols for confiscation of contraband could not be located in the youth files. Disclosure stating that policies and procedures will be provided upon request could not be located in the youth files. **CORRECTIVE ACTION:** Add required disclosures to intake packet.		
Authorizations 413-215-0576(3) (d) Activity specific authorizations are preapproved to allow children to participate in potentially hazardous activities, including but not limited to using motorized yard equipment, swimming, and horseback riding. Two out the five youth files reviewed did not have activity specific authorizations. **CORRECTIVE ACTION:** Ensure that this authorization is obtained and kept in the respective youth file from this point forward.	**Yes☐ No☐**	As per the program's Corrective Action Plan submitted on 7/26/22, this required authorization will be obtained and kept in the respective youth files moving forward. Compliance in this area will be verified in a subsequent site visit.
413-215-0526 New Facility or Remodel *(Technical Amended 01/13/20)* (1) Building plans. (a) A *residential care agency* must submit to the Department for approval a set of plans and specifications for each building used for children in care operated by the *residential care agency* River Rock was recently renovated. **CORRECTIVE ACTION:** Submit a copy of River Rock's renovated floor plan	**Yes☐ No✓**	The program submitted requested floor plan via email on 12/22/22.

New Findings from Site Visit	Comments
No new findings identified	

Interview Summary
During this unannounced site visit conversations were held with the program's Residential Referral and Admissions Coordinator, River Rock's Program Manager and the program's Assistant Director. The program continues to receive a steady flow of referrals with an increase of voluntary placement requests. Staffing continues to ebb and flow. Despite a differential pay increase, swing shift remains a difficult shift to keep fully staffed. Census remains moderately low with 8 youth at River Rock and 6 youth in Rising Light. The program recently completed their accreditation review by The Joint Commission and did well. This year's evaluator understood the program's service scope and was focused on the treatment and behavioral piece of the daily work. River Rock had recent maintenance on the building's sump pump. A malfunction in this equipment left the laundry room and one of the facility's bathrooms temporarily out of service. Laundry was taken to two nearby buildings to be washed, Detention and Rising Light. An available youth from River Rock was interviewed. All youth from Rising Light were off campus, attending school. The youth interviewed shared two scenarios that left them feeling unsafe during their stay at both Rising Light and River Rock involving staff members. These concerns were reported to the Child Abuse Hotline and closed at screening. Given the youth's disclosure of feeling unsafe in combination with the youth's reservation in speaking freely, this youth interview was brief. The youth was able to highlight no push button showers as a program positive. Changes that the youth would suggest included making River Rock feel more like a home by adding warm lighting and rugs. It was also suggested that there be more fresh produce and variety in the meals being offered. The youth is looking forward to more promised summer activies that staff have mentioned as the school year draws to a close.

Observations
Tours of both buildings did not produce any physical findings. The remodel at River Rock is in the final stages. The facility's capacity increased from 10 bedrooms to 14 individual bedrooms.

Corrective Actions and Timeframes:
Please submit the following to verify compliance.
Within 45 days of receipt of this report **Douglas County Juvenile Department** must submit a letter of verification indicating the agency is in compliance with the specific rules cited above and describing how compliance will be maintained going forward. Along with the letter of verification, the agency must submit any, and all specific documentation requested in the body of this report. The letter of verification and any additional requested documents can be emailed directly to **Mary Torres** at mary.torres@odhsoha.oregon.gov.

Licensing Coordinator's Signature: Mary D Torres Date: 7/5/23

Manager Review: _____ Date: 7-3-2023